WEB COPY

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 08-07-2026

CORAM

THE HONOURABLE MR.JUSTICE K.RAJASEKAR

CRL OP(MD) NO. 13429 of 2026

M.Santhi

Petitioner(s)

Vs

1.Shanmugasundaram

2.State through,
The Inspector of Police,
District Crime Branch Police Station,
Theni District.

Respondent(s)

For Petitioner(s):
Mr.M.Uthayasuriyan

For Respondent(s):
Mr.J.Vishnu
Government Advocate (Crl. Side) for R-2

Prayer:

To cancel the bail granted by the Judicial Magistrate, Theni by impugned order dated 16.06.2026 in Crl.M.P.No.1623 of 2026, continue his committal in cutody.

ORDER

The defacto complainant in Crime No.1 of 2026 has come forward with this petition seeking cancellation of bail granted to the first respondent by the learned Judicial Magistrate, Theni, in Crl.M.P.No.1623 of 2026 dated 16.06.2026.

https://www.mhc.tn.gov.in/judis

WEB COPY

2. The learned counsel for the petitioner submits that some of the accused, who are absconding in this case, are threatening the defacto complainant. He further submitted that the amount involved in this case is huge and it has not been properly considered by the learned Magistrate while granting bail and hence, cancellation of bail granted to the first respondent would render justice.

3. The learned Government Advocate (Crl. Side) appearing for the second respondent reported that though the learned Judicial Magistrate has granted bail to the first respondent, he was not released on bail and he is remanded in judicial custody in another case. It is further stated that some of the accused are still absconding.

4. I have also gone through the order passed by the learned Magistrate in Crl.M.P.No.1623 of 2026 dated 16.06.2026. On careful perusal of the same, it reveals that the first respondent was released on default bail and it is a statutory bail and the same could not be cancelled on consideration of any merits at this stage of the case. Hence, this Court finds no infirmity in the order passed by the learned Magistrate by exercising powers under Section 187(3) of BNSS and this Court finds no merits in this petition.

5. Accordingly, this Criminal Original Petition is dismissed.

08-07-2026

Lm

https://www.mhc.tn.gov.in/judis

WEB COPY

To
1.The Judicial Magistrate,
Theni.

2.The Inspector of Police,
District Crime Branch Police Station,
Theni District.

3.The Additional Public Prosecutor,
Madurai Bench of Madras High Court.

WEB COPY

K.RAJASEKAR, J.

Lm

Crl.O.P.(MD).No.13429 of 2026

08.07.2026

https://www.mhc.tn.gov.in/judis